

JUDGMENTS RENDERED AGAINST THE UNITED STATES.

LETTER

FROM

THE ACTING ATTORNEY-GENERAL,

TRANSMITTING

A LIST OF JUDGMENTS RENDERED AGAINST THE GOVERNMENT
 BY CIRCUIT AND DISTRICT COURTS.

FEBRUARY 11, 1903.—Referred to the Committee on Appropriations and ordered to be printed.

DEPARTMENT OF JUSTICE,
 Washington, D. C.

SIR: Inclosed herewith please find a list of judgments rendered against the Government by the circuit and district courts of the United States under the act of March 3, 1887 (1 Supp. R. S., 559), entitled "An act to provide for the bringing of suits against the Government of the United States," for which an appropriation should be made.

Very respectfully,

J. K. RICHARDS,
 Acting Attorney-General.

THE SPEAKER OF THE HOUSE OF REPRESENTATIVES.

List of judgments rendered against the Government by circuit and district courts.

Name.	Judgment.	Costs.	Date of judgment.	Exhibits.
Lelia M. Tinsley	\$202.60		Oct. 23, 1902	1
Henry B. Lovering	401.50		Sept. 20, 1902	2
Holmes & Wilk	3,714.00	\$208.45	June 27, 1902	3
James Graham, jr.	1,500.00		Oct. 11, 1902	4
Total	5,818.10	208.45		

EXHIBIT No. 1.

[Lelia M. Tinsley, administratrix of W. M. Tinsley, v. The United States, No. 955.]

It is therefore adjudged, ordered, and decreed that the said defendant, The United States of America, do pay to the said Lelia M. Tinsley, administratrix of W. H. Tinsley, deceased, or Caskie & Coleman, her attorneys of record, the said sum of \$202.60, with interest thereon at the rate of 4 per cent per annum from this date until paid, and all the costs for witnesses and clerk's fees by the said plaintiff in this behalf expended since July 9, 1897, the date of the filing of the answer of the defendant whereby the right of the plaintiff to recover was put in issue.

HENRY C. McDOWELL.

WESTERN DISTRICT OF VIRGINIA, *October 23, 1902.*

EXHIBIT No. 2.

[Henry B. Lovering v. The United States, No. 1084.]

This cause was entered at the December term, A. D. 1893, of this court, and now upon consideration thereof, to wit, September 20, 1902, it is ordered that judgment be entered for the petitioner in the sum of \$451.50.

DISTRICT OF MASSACHUSETTS, *September 20, 1902.*

EXHIBIT No. 3.

[Holmes & Wilk v. The United States, No. 1094.]

It is therefore considered and adjudged by the court that the plaintiffs, Holmes & Wilk, recover of the defendant, The United States, the following amounts, to wit: First, for removal and deposit of excavation from lock pit to places beyond the land of the Government, at the direction of the Government's engineers, contrary to the provisions of the contract, \$3,020; second, for costs of building a second cross wall from the cofferdam to the bank of the river, \$694; total, \$3,714. The defendant will also pay the costs of this cause.

MIDDLE DISTRICT OF TENNESSEE, *June 27, 1902.*

Costs: \$208.45.

EXHIBIT No. 4.

[James Graham, jr., v. The United States, No. 1265.]

It appearing that the libellant in this case is a mere agent, suing in his own name for James Pearn, master, and George Lunn and John Maccoy, partners in trade under the name and style of Lunn & Maccoy, the owners of said steamer,

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And the conclusion of the court from the said facts is that the sum of \$1,500 should be awarded against the defendants for the salvage services aforesaid; and counsel for the petitioners having asserted an attorney's lien upon the recovery, it is further the opinion of the court that the salvage award aforesaid should be paid to Charles Sharp and Robert M. Hughes, as partners in the practice of law, under the name and style of Sharp & Hughes.

It is therefore adjudged, ordered, and decreed that James Pearn, master, and George Lunn and John Maccoy, owners, as partners in trade under the name and style of Lunn & Maccoy, do recover against the United States of America the sum of \$1,500, with interest thereon from the date hereof at the rate of 5 per cent, and that each party shall pay its own costs.

(EDMUND WADDILL, JR.,)
*United States District Judge.*EASTERN DISTRICT OF VIRGINIA, *October 11, 1902.*